WESTON-SUPER-MARE ASSOCIATION OF MALAYALEES
C/o North Somerset BME Network, 12 Orchard Place, Weston-Super-Mare,
BS23 1QP, United Kingdom.

Constitution of The WAM
Established in 2013

WAM (Weston Super Mare Association of Malayalees) is a nonprofit, non-political, secular and cultural organization of people from Kerala, India who migrated to the United Kingdom (UK). To further or benefit the Malayali community in Weston super mare without distinction of sex, race, political, religious or other opinions. By associating together with the said community and the local authorities,voluntary or other organizations in a common effort to provide: recreation, leisure time facilities and/or activities with the objectives of improving the conditions, quality of life, living for the said community members and impart the heritage, culture and values to the youth in the community.

1. Name Origin

The name of the organization shall be Weston Super Mare Association of Malayalees here in after called *WAM.*

2 Definitions

2.1 'Association' means Weston Super Mare Association of Malayalees also referred to as *WAM.*

2.2 'President' means the President of the Association.

2.3 'Vice President' means Vice President of the Association.

2.4 'Secretary' means the Secretary of the Association.

2.5 'Joint Secretary' means Joint Secretary of the Association.

2.6 'Treasurer' means the Treasurer of the Association.

2.7 'General Body' means the General Body of the Association.

2.8 'Executive Committee' means the Executive Committee of the Association.

2.9 'General Body Meeting' means an ordinary meeting of the members of the association.

2.10 'Annual General Body Meeting (AGM) means the Annual General Body Meeting of the Association.

2.11 Registered Address:

The office of the association shall be the address of the C/o North Somerset BME Network, due to the non-availability of a permanent building for the association. Once the building for the office is finalised, the office shall not be changed except by the resolution of a special meeting of the executive committee members.

Address
Weston-Super-Mare Association of Malayalees,
C/o North Somerset BME Network,
12 Orchard Place, Weston-Super-Mare,
BS23 1QP,
United Kingdom.

2.12 The advisory committee:

The Advisory Committee consists of 5 elected individuals who served as an official in the previous governing body of the association.

Functions of Advisory Committee:

Evaluate the performance of activities, reviews, monitors and assess a specific program, serve as advocate for the organization to the ordinary members it serves, ensure/ validate the association and its governing body and consider sending notice of advice if any concerns in action against the constitution and provide feedback to the governing body from the community.

Other possible responsibilities of an Advisory Committee:

The Advisory Committee can make recommendations, provide advice, assist the governing body, OR act as a governing body temporarily in the events of uncertainty of the smooth running of the association.

The Advisory Committee may involve in the case of emergency fund movement.

Advisory Committee can address and decide a specific organizational need in association with the present governing body.

This Advisory Committee must reshuffle every year with the AGM.

The Advisory Committee can serve as an ad hoc on short-term events such as, the Annual Meeting, crisis or as a disaster management.

Advisory members shall have no power to make decisions or insist the governing body during their period; however, the advisory committee can advise and give

awareness for specific actions and call a general body meeting, if the governing body refuses expert advices regarding a serious matter.

3. Area of Operation

The Area of Operation covers Weston super mare and outskirts which includes Clevedon and Burnham On Sea. However, WAM (Weston Super Mare Association of Malayalees) is centred in Weston Super Mare.

4. Aims and Objectives

4.1 To support and promote racial harmony and security within the area of benefit by the provision of cultural events and awareness programs.

4.2 To further or benefit the children by encouraging participation and involvement in activities and events.

4.3 To promote social cohesion and good fellowship among the Malayalee community living in and around Weston Super Mare.

4.4 To provide and promote opportunity for literacy, cultural and entertainment activities.

4.5 To promote Malayalam language, culture and heritage.

4.6 To discuss and exchange ideas and values to enhance the quality of life and friendship.

4.7 To liaise with other organizations and similar associations in areas of common interest.

4.8 To impart an understanding of Kerala heritage, culture and values among the British society in general and other ethnic communities through cultural and social activities.

4.9 To encourage all types of voluntary activities and extend helping hand to anyone in distress, and if needed, to raise money for charity as appropriated by the general body/executive committee.

4.10 To promote environmental awareness and practices that will help better eco systems.

4.11 To encourage, exhibit and promote the talents of young and upcoming British Keralite artists by providing them facilities for displaying their talents and sponsoring their participation were necessary for public venues in the United

Kingdom or such other places as deemed appropriate by the majority of Members.

4.12 To extend financial and other support to its members in the case of an Emergency, include death or any other crisis as determined by the Executive Committee.

5. Membership

5.1 The membership of the association shall be open to all people of age 18 and over, who is of Kerala/Malayali origin descendants of Keralites, people related to Keralites and their descendants and willing to abide by the rules and regulations of the association.

5.2 Membership categories A and B below will be valid only after a membership form is being filled in by the person(s) and submitted online or a written copy to the office or an authorized person who can receive the membership applications on behalf of the association and be approved by the executive committee after careful consideration.

5.2.1 Categories of Membership

a. Individual membership
Shall be open to all people described in the above paragraph of the age 18 and above living in Weston Super Mare and surrounding areas.

b. Family membership
Includes both parents and children below the age of 18.

c. Associate Membership
Shall be open to those people invited by any other members of the association who feel their representation is in accordance with the organization objectives. Associate members are liable to pay the prescribed fee for attending any functions or events as a contribution, which shall be decided by the executive committee. They shall not be permitted to vote in general body meeting or in any other meeting of the association.

5.3 The Executive Committee can remove any member from membership if he/she is found working against the aims and objectives of the Association. Members must not be absent more than three Annual General meeting consecutively to maintain the membership.

5.4 A member can be dismissed through a vote if the majority of the executive committee members vote for it. The committee's decision must be informed to the individual in writing. The dismissed member can appeal against executive committee decision in writing to the President within 21 days. The president can

then review the appeal and decide on it. The dismissed member will have no voting rights and cease his/her membership from the association.

5.5 All admission fees, membership fees, privileges, etc. shall be set periodically by the Executive Committee.

5.6 The membership fee or subscription is subject to the decision of the executive committee; the membership once approved will be valid until the member is a resident of the operational areas of the association.

6. General Body Meeting

The general body meeting is conducted to discuss the affairs of the association where views from all members required. The Secretary on behalf of the executive committee will have the power to call for a General Body Meeting. Thirty percent of members will form the quorum for the General Body Meeting. Any member of the association can request for a general body meeting in writing to the Secretary and detailing the reason for the request. The executive committee will make a decision on whether to accept the request. The General Body comprises of all the Regular Members of the Association.

6.1 Powers of the General Body is:

6.1.1 To nominate/elect the Executive Committee of the Association.

6.1.2 To decide on all policy matters relating to the Association.

6.1.3 To approve the annual statement of accounts and annual reports.

6.1.4 To amend the Constitution subject to the provisions of Charity Law and approval of the Charity Commission for England and Wales on such matters arising.

6.1.5 To give directions to the Executive Committee on policy matters relating to the Association.

6.1.6 A General Body Meeting with a 51% of the Regular Members will have the right to review the functioning of the existing Executive Committee and can revoke whole or part of the Executive Committee with the approval of the majority of the present members.

7. Annual General Meeting (AGM)

7.1 The annual general meeting shall be held in the month of March/April of every year given three weeks' notice in advance to the members of the association.

7.2 New executive committee will take overcharges on a chosen convenient date immediately after the AGM before the end of April of that year.

7.3 The regular business of AGM shall be to receive and pass the annual report and financial statement and to elect the executive committee.

7.4 Fifty one percent of the total members of the association will form a quorum for the AGM.

8. Executive Committee

8.1 An executive committee elected annually at the annual general body meeting, which shall be empowered to conduct the general administration of the association, shall carry out the affairs of the association.

8.2 The term of Executive Committee shall be from April 1st to 31st March of the next year. All Association Documents shall be transferred to the new Executive Committee no later than 31st April of the following year.

8.3 The executive committee shall consist of the president, vice president, secretary, joint secretary, treasurer and 12 other committee members

8.4 A person cannot hold an executive member post if he/she lives the outside Weston Super Mare and the surrounding area. Ten or more of the executive committee members shall make the quorum for executive committee meetings. The executive committee shall meet together for the planning and ministering of the association.

8.5 The Executive Committee shall meet at least once in every 2-3 months and a minimum of seven days notice should be served for this meeting.

8.6 All decisions in the Executive Committee are taken on a majority vote of the members present and voting.

8.7 All members of the Executive Committee are eligible for a single non-transferable vote. No proxies are allowed.

8.8 No person shall be entitled to act as a member of the Executive Committee whether or on any subsequent entry into office until after signing in the minute book of the Executive Committee, a declaration of acceptance and of willingness to act in the trusts of the Association. Each Executive Committee Member should declare in writing that he/she is not an office bearer and/or part of any Executive Committees of any competing and/or similar organisation and/or association.

8.9 The president or the Secretary on the request of any four or more members of the executive shall call for a meeting of the executive committee. Disputes arising at any meeting of the executive committee shall be decided by the majority of votes of the members present. In case of an equality of votes, the President of the meeting shall have a second or casting a vote.

8.10 The Executive Committee shall transact all business including:

i. Approval of the Program for the year

ii. Submission of the Budget to the General Body

iii. Provision of an annual audit of accounts.

iv. The smooth running of the Association

8.11 Determination of Membership of Executive Committee

A member of the Executive Committee shall cease to hold office if he or she:

i. Is disqualified from acting as a Member of the Executive Committee by the value of section 46 of the Charities Act 1992 (or any statutory re-enactment or modification of that provision)
(Refer to http://www.legislation.gov.uk/ukpga/1992/41/contents for the Charities act and the aforementioned clauses.)

ii. Becomes incapable because of mental disorder, illness or injury of managing and administering his or her own affairs;

iii. Is absent without permission of the Executive Committee from three consecutive meetings and the executive committee resolve that his or her office be vacated; or notifies to the Executive Committee a wish to resign (but if at least three members of the Executive Committee will remain in office when the notice of resignation is to take effect);

iv. Fails to discharge his or her duties or acts to the detriment of the Association, according to the judgment of the Executive Committee, that member may be removed from the position by a two-thirds majority decision in a duly called

executive committee meeting. But it should be approved/ passed by a duly called General Body meeting with a 2/3 of the Regular Members.

v. Holds any official position or forms a part of the Executive Committee of any competing or similar organisation(s) or association(s) and/or those have a conflict of interest with Association.

vi. Removed by the General Body as per Clause 6.1.6

8.12 Powers and functions of Executive Committee

i. To manage the administration of the Association and take direct responsibility of its programs.

ii. To hold all assets of the Association and use them for the welfare of the target groups that the Association serves.

iii. To receive all receipts and make all payments and acquire and dispose of all wealth of the Association.

iv. To plan the programs and policies of the Association and prepare appropriate budgets for the programs and mobilise resources perceived in the plans and programs.

v. To mortgage, sell or alienate any property of the Association for the benefit of the target groups that the Association serves with the written consent of the 2/3 rd majority of those present on a duly called General Body meeting with a 2/3rd of the Regular Members.

vi. To elect or appoint any casual vacancy of office-bearers of the Association from among the members of the Executive committee.

vii. To appoint and terminate staff of the Association and its projects and decide their salaries and other terms and conditions of employment.

viii. To raise fund for the running expenses and future developments of Association by arranging fundraising programs and activities.

9. President

The president shall be elected in accordance with the procedure at the election, who shall represent the association on all formal occasions and shall represent and shall be the President on all meetings. He shall be an ex-officio member of all subcommittees. The president may have a second or casting a vote in the event of a tie.

9.1 Powers and Functions of the President

i. The bank accounts of the Association shall be operated jointly by the President, Secretary and Treasurer.

ii. The President shall give directions to other office-bearers regarding the work to be undertaken by the Association.

iii. The President is empowered to exercise his casting vote in the event of a tie in any decision-making process relating to the Association.

iv. The President shall represent the Association either jointly with Secretary and other office-bearers or individually as decided by the Executive Committee.

v. The President either jointly with Secretary and other office-bearers or individually as decided shall attend all legal proceedings for and against the Association by the Executive Committee.

vi. The President shall co-ordinate works of the standing committees and receive reports of the respective committees.

10. Vice President

The Vice president shall be elected in accordance with the procedure at the election. The Vice President shall exercise the powers of the President in his absence if authorized so by the President or approved by the Executive committee.

11. Secretary

Secretary shall be elected by the general body; in accordance with the constitution of the association. He/she will have the duties of a chief executive officer responsible for conducting the affairs of the association.

11.1 Powers and Functions of the Secretary

i. To hold the custody of all the documents of the Association and proper updating and maintenance of all books, including the Members Register, Minutes Book, etc.

ii. To record minutes of the meetings

iii. To serve as the official spokesperson of the association

iv. To manage the day-to-day affairs of the Association according to the directions of the President and resolutions of the Executive Committee.

v. To implement the decisions of the Executive committee and report the progress to the meetings of the Executive committee.

vi. To summon all the meetings of the Executive committee and General Body according to the directions of the President.

vii. To represent the Association jointly with the other office-bearers or severally according to the decision of the Executive committee.

viii. To attend all legal proceedings for and against the Association jointly with the other office-bearers or severally.

ix. To initiate all communications and correspondence of the Association.

12. Joint Secretary

The Joint Secretary shall be elected by the general body in accordance with the constitution of the association. He/she shall assist the Secretary in all the matters arising with the Secretary. The Joint Secretary shall exercise all powers of the Secretary in the absence of the Secretary if so authorized by the Secretary or decided by the Executive Committee.

13. Treasurer

The Treasurer shall be elected by the general body in accordance with the constitution of the association.
The treasurer shall collect dues and contributions and issue a receipt for the same. The Treasurer shall keep the books of accounts of the Association and operate the bank accounts of the Association jointly with President/Secretary. The Treasurer shall present statements of accounts of the interim period in all the meetings of the Executive Committee and seek approval from the Executive Committee. The annual statement of accounts shall also be prepared and presented by the Treasurer and seek the approval of the meeting of the Executive Committee and General Body. The Treasurer shall make the financial status of Association available for inspection by the Executive Committee and /or auditors.

14. Election

Any two or more member of the association may nominate a candidate for a various position in the committee at an AGM and should have majority support of the members present at AGM. In case of more than one candidate for one position, the election shall be held with a secret ballot. All resolutions can be carried out on a simple majority in committee and in annual AGM except for constitution

amendment.
A person cannot stand and be elected to the same post more than 2 times in a row. Each individual member above the age of 18 shall have one vote. All resolutions can be carried out on a simple majority of those present at the AGM/General body meeting except changes to the constitution. Only members who are 18 years of age or older are eligible to vote and hold any elected office except for the cultural Programs Coordinator. Cultural Program coordinator shall not have any voting rights if they are below 18 years of age. Associate members shall have no voting rights.

15. Funds

The funds of the Association comprised of the membership fee, contributions, advances, grants and donations from members and others, loans from financial institutions, individuals and government bodies etc.
All the funds of the Association shall be kept in a bank account in the name of the Association and operated jointly by the President, Treasurer and Secretary. The official signatories of the bank account shall be the President, Secretary and Treasurer. The treasurer is entitled to keep petty cash to a maximum of £250.00 (Two hundred and fifty pounds only) and all the petty cash vouchers shall be approved by the Secretary/ President. All the cash in excess of £250.00 should be deposited with the official Bank account of Association. All Cheques drawn on the Account of Association must be signed by at least two of the official signatories. Withdrawal of cash more than £1,000.00 should be approved by the majority of the Executive Committee.

The funds can be used for the cultural, social activities of the association, including food, on approval by the executive committee. Subscription amount, funding from government organizations/ councils shall not be used for providing alcoholic drinks. Use of association funds for the charitable purpose should have the approval from the General body, except in circumstances where the funds were collected for a specific purpose, as authorized by the executive committee.

16. Special Funds, Emergency Funds & Restricted Funds

The Association may create and maintain Special Funds, Emergency Fund and/or Restricted Funds. Deposits to and withdrawal from the Special Funds and Restricted Funds shall be made only with the approval of the General Body of the Association. 20% Admission Fees of the Members should be deposited in a Restricted Fund and the other 80% can be used as a working capital of the Association. The interest and/or dividend income from this fund may be used by the executive committee for Administrative Expenses. The objective of Emergency Fund, if any, is to extend financial and other support to its members in the case of an Emergency. An emergency includes death, accident or any other crisis situation as determined by the Executive Committee. The primary beneficiaries of the

Emergency Fund are the current members of the Association and the Secondary beneficiaries can be decided by the executive committee in the event of a general emergency.

17. Accounts/Audit

All receipts and expenditure shall be properly accounted and monthly statement of accounts presented in the meeting of the Executive Committee by the Treasurer and approved by the Executive Committee. There shall be two internal auditors elected by the Annual General Body meeting for the auditing of the accounts.

18. The accounting period of the organisation is annual and the financial year is from 1st April to 31st March unless decided by the General Body Meeting.

18.1 The Statement of accounts and the annual report has to be approved by the General body in the AGM.

19. Alterations / Amendments to the Constitution

19.1 Subject to the following provisions of this clause the Constitution may be altered by a resolution passed by not less than two-thirds of the members present and voting at a General Meeting. The notice of the General Meeting must include notice of the resolution, setting out the terms of the alteration proposed. The Executive Committee should promptly send a copy of any amendment made under this clause to all of its Sub Committees/Standing Committees/Ad Hoc Committees if any.

19.2 No amendment shall be made to Clause 1 (the Name of the Organization Clause).

19.3 No Amendments shall be made to Clause 4 (The Aims & Objective Clause)

19.4 No Amendments shall be made to clause 8

19.5 No Amendments shall be made to clause 20 (The Dissolution Clause) without the prior consent in writing to the committees.

20 Emergency Fund

This policy outlines the criteria and considerations given to awards classed as

emergencies. This should be used as a guide to decision-making executive committee and for ensuring that the affected family receives the award.

20.1 Emergencies refer to unexpected events like the death of any of the WAM members.

20.2 The amount of the Emergency fund will be decided on the background of the situation by the ongoing governing body.

20.3 The Emergency fund is only available for a specific individual from each family at a time.

20.4 Eligible costs - All costs associated with delivering of the emergency fund, should collect from all the members equally. (Total amount divided by Total members). Any balance amount will use for other expenses or deposit into Emergency fund account.

20.5 Approval for the Emergency fund must be confirmed by the Executive Committee and consult with Advisory committee if required.

20.6 It is compulsory for the Funds to pay to the beneficiary within one or two days of approval.

21. Dissolution

If the Executive Committee decides that it is necessary or advisable to dissolve the Association, it shall call a meeting of all members of the Association, of which not less than 21 days' notice (stating the terms of the resolution to be proposed) shall be given. If the proposal is confirmed by a two-thirds majority of those present and voting, the Executive Committee shall have the power to realize any assets held by or on behalf of the Association. Any assets remaining after the satisfaction of any proper debts and liabilities shall be given or transferred to such other charitable institution or institutions having similar objectives to the Association as the members of the Association may determine or failing that shall be applied for some other charitable purpose. A copy of the statement of accounts, or account and statement, for the final accounting period of the Association, must be recorded.

New Policy's and Addendum to the constitution of the WAM

April 2019

Amendment 1.- Paragraph 2:11 – Change of address

WAM Registered address amended and replaced with BME network from the

President's home address.
New Address
Weston-Super-Mare Association of Malayalees,
C/o North Somerset BME Network,
12 Orchard Place, Weston-Super-Mare, BS23 1QP

i. It is the responsibility of WAM executive members to collect any letters belonging to WAM, from BME Network at least once/twice in a month.
ii. If the current circumstances change in the BME Network, then the correspondence will be sent out to the President.

Amendment 2- Paragraph 8:3 – Executive Committee

The executive committee can only be a total of 11.

Amendment 3 -Paragraph 16 – New policy added (Ref: 4:12 and 15)

The new policy of Emergency fund will be found in paragraph 20, and the existing Dissolution point will move to paragraph 21.

April 2021

Amendment 1- Paragraph 8:3 – Executive Committee

The executive committee can only be 15.

Amendment 2 - paragraph 2:12 – Added Advisory committee and its functions: added as 2:12.

The advisory committee:

The Advisory Committee consists of 5 elected individuals who served as an official in the previous governing body of the association.

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Evaluate the performance of activities, reviews, monitors and assess a specific program, serve as advocate for the organization to the ordinary members it serves, ensure/ validate the association and its governing body and consider sending notice of advice if any concerns in action against the constitution and provide feedback to the governing body from the community.

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Checked and updated by the Governing body 2021-22

